CONTENTS

3.1 INTRODUCTION **2**

3.2 NATIONAL PLANNING POLICY AND GUIDANCE **3**
National Planning Policy Framework **3**
National Planning Practice Guidance **6**

3.3 REGIONAL PLANNING POLICY **8**

3.4 LOCAL PLANNING POLICY **9**
Swindon Borough Local Plan 2026 (March 2015) **9**

3.5 SUPPLEMENTARY PLANNING DOCUMENTS **15**
Eastern Villages Draft Supplementary Planning Document (2013) and South Marston Draft Supplementary Planning Document (2013) **15**

3.6 EMERGING LOCAL PLANNING POLICY **15**
Neighbourhood Plan for South Marston, Submission Draft (December 2015) **15**
Draft Supplementary Planning Document 16
New Eastern Villages Planning Obligations (March 2016) 16

3.1 INTRODUCTION

3.1.1 The Government's commitment to the delivery of sustainable development is enshrined in the *Localism Act* (2011) and *National Planning Policy Framework* (2012). Local planning authorities are duty bound to prepare positive plans to encourage sustainable development that meets an area's need for homes, jobs and open space. Section 38(6) of the *Planning and Compulsory Purchase Act* 2004 requires that planning applications must be determined in accordance with the prevailing development plan unless material considerations indicate otherwise.

3.1.2 This chapter of the ES sets out elements of the planning policy context for the Proposed Development. It provides a general overview albeit is not necessarily exhaustive, and where necessary to support specific assessment areas, is supplemented by a more detailed policy review within the relevant topic chapters.

3.2 NATIONAL PLANNING POLICY AND GUIDANCE

National Planning Policy Framework

3.2.1 The *National Planning Policy Framework* (NPPF) was published in March 2012; at its core is a presumption in favour of sustainable development for plan making and decision taking. The three dimensions of sustainable development – economic, social and environmental – are outlined, although it is the policies in the entire NPPF, taken collectively, which constitute the definition of sustainable development. At paragraph 49, the NPPF confirms that "housing applications should be considered in the context of the presumption in favour of sustainable development".

3.2.2 A fundamental dimension to the promotion of sustainable development in the NPPF is the requirement for local planning authorities to provide the supply of housing required to meet the needs of present and future generations. It is a "core planning principle" to "proactively drive and support sustainable economic development to deliver the homes, business and industrial units, infrastructure and thriving local places that the country needs" (para 17). To this end it is a core planning principle also to "boost significantly the supply of housing" (para 47) and to deliver a wide choice of new homes including, specifically, homes to meet affordable housing needs (para 50).

3.2.3 Paragraph 14 of the NPPF provides the specific guidance as to how the presumption in favour of sustainable development is to apply in decision making on applications. Proposals in accord with the development plan are to be approved without delay. Where the development plan is silent or out of date then permission should also be granted unless "any adverse impacts of doing so would significantly and demonstrably outweigh the benefits when assessed against the policies in this Framework when taken as a whole".

3.2.2 It is the policies in the entire NPPF, taken collectively which constitute the definition of sustainable development. The NPPF sets out policy presumptions under specific themes; those particularly relevant to the Proposed Development are summarised below:

Building a Strong Competitive Economy

3.2.3 At paragraph 18 the NPPF expresses the Government's commitment to securing economic growth in order to create jobs and prosperity and identifies the role of the planning system in delivering sustainable economic growth. Paragraph 19 notes that planning should encourage sustainable growth and that significant weight should be attached to that ambition.

Promoting Sustainable Transport

3.2.4 Paragraph 29 of the NPPF reinforces the importance of sustainable transport provision and providing choice to people about how they travel. New development should be located to prioritise public transport and should incorporate layouts which provide a safe and secure environment for walking and cycling.

Delivering a Wide Choice of High Quality Homes

3.2.5 Paragraph 50 of the NPPF notes that housing applications should be considered in the context of the presumption in favour of sustainable development, recognising the need to deliver a wide choice of high quality homes providing sustainable, inclusive and mixed communities. Paragraph 52 states that the supply of new homes can sometimes be best achieved through planning for larger scale development such as extensions to towns that follow the principles of Garden Cities.

Requiring Good Design

3.2.6 Paragraph 56 of the NPPF recognises that good design has a role to play in the pursuit of sustainable development, is indivisible from good planning and should contribute positively to making places better for people. Paragraph 57 requires high quality and inclusive design for all development, including buildings, public and private spaces, and wider area development schemes.

Promoting Healthy Communities

3.2.7 Paragraph 69 of the NPPF acknowledges the role of the planning system in facilitating healthy and inclusive communities; this includes a requirement for safe and accessible developments containing clear and legible pedestrian routes and high quality public open space.

3.2.8 Paragraph 70 seeks promotion of social, recreational and cultural facilities and services, such as high quality open space and community facilities such as local shops, meeting places, sports venues and places of worship.

Meeting the Challenge of Climate Change and Flooding

3.2.9 Paragraph 93 of the NPPF sets out matters in respect of renewable energy and low carbon energy and associated infrastructure. Paragraph 96 encourages new development to take account of landform, layout, building orientation, massing and landscaping to minimise energy consumption.

3.2.10 Paragraph 100 requires that development should be directed away from areas at highest risk of flooding.

Conserving and Enhancing the Natural Environment

3.2.11 Paragraph 109 of the NPPF places an emphasis on protecting valued landscapes, minimising impacts on biodiversity and providing net gains where possible and preventing unacceptable levels of pollution.

Conserving and Enhancing the Historic Environment

3.2.12 Paragraph 128 states that in determining applications, local planning authorities should require an applicant to describe the significance of any heritage assets affected, including any contribution made by their setting. The level of detail supplied by an applicant should be proportionate to the importance of the asset and should be no more than sufficient to understand the potential impact of the proposal upon the significance of that asset.

National Planning Practice Guidance

3.2.13 The National Planning Practice Guidance (NPPG) was launched in March 2014 and is a web-based resource which is considered a 'live' document and updated or amended when required. The on line resource is intended to amplify and reinforce the policies within the NPPF.

3.2.14 The following paragraphs set out some of the areas of guidance relevant to the application.

3.2.15 ID 42-006-20140306 of the NPPG identifies the benefits of preparing a Transport Assessment.

3.2.16 ID 26-006-20140306 of the NPPG provides further information on design in the planning process and states:

"Design impacts on how people interact with places. Although design is only part of the planning process it can affect a range of economic, social and environmental objectives beyond the requirement for good design in its own right. Planning policies and decisions should seek to ensure the physical environment supports these objectives. The following issues should be considered:

- *local character (including landscape setting);*
- *safe, connected and efficient streets;*
- *a network of greenspaces (including parks) and public places;*
- *crime prevention;*
- *security measures;*
- *access and inclusion;*
- *efficient use of natural resources; and*
- *cohesive & vibrant neighbourhoods."*

3.2.17 ID 53-002-20140306 of the NPPG explains the links between health and planning, that development should avoid adverse impacts on human health, create opportunities for people to make healthy choices, promote active travel and physical activity, and promote access to high quality open spaces and opportunities for play, sport and recreation.

3.2.18 ID 7-030-20140306 of the NPPG identifies the objectives of a flood risk assessment. It states:

> *"The objectives of a site-specific flood risk assessment are to establish:*
> - *whether a proposed development is likely to be affected by current or future flooding from any source;*
> - *whether it will increase flood risk elsewhere;*
> - *whether the measures proposed to deal with these effects and risks are appropriate;*
> - *the evidence for the local planning authority to apply (if necessary) the Sequential Test, and;*
> - *whether the development will be safe and pass the Exception Test, if applicable."*

3.2.19 ID 7-068-20140306 of the NPPG provides a checklist of matters to be addressed in a flood risk assessment.

3.2.20 ID 8-016-20140306 of the NPPG explains how biodiversity should be taken into account in preparing a planning application ID 8-018-20140306 of the NPPG identifies the issues that should be considered when seeking to avoid, mitigate or compensate for significant harm to biodiversity and that green infrastructure can help to mitigate any significant harm to biodiversity (ID 8-019-20140306).

3.3 REGIONAL PLANNING POLICY

3.3.1 Regional Planning Guidance 10 (*RPG10*) (2001) set out the Government's regional planning strategy for the South West up to 2016 and beyond. The introduction of the *Planning and Compulsory Purchase Act* 2004 resulted in *RPG10* becoming the Regional Spatial Strategy (RSS) for the South West and part of the statutory development plan.

3.3.2 Section 109 of the Localism Act, which received Royal Assent in November 2011, gave the Secretary of State the power to revoke Regional Strategies (RS), and on 20 May 2013, the RSS for the South West was revoked.

3.3.3 A new RSS had been in preparation, reviewing and rolling forward *RPG10* to an end date of 2026. The South West Regional Assembly submitted a draft of that new RSS to the Secretary of State in April 2006 and its Public Examination ran from April until July 2007. The Secretary of State's Proposed Changes to the draft version were published in 2008 but were not progressed to approval.

3.3.4 The Secretary of State's Proposed Changes of 2008 had identified an area of search for a strategic urban extension of 12,000 dwellings to the east of Swindon, to the north and south of the A420. This proposal had been informed by the conclusions of the *Swindon Principal Urban Area Study* (2003) and the *Swindon Joint Study* (2005) that this area of search was the most suitable location to accommodate the town's future large scale growth.

3.4 LOCAL PLANNING POLICY

Swindon Borough Local Plan 2026 (March 2015)

3.4.1 The Swindon Borough Local Plan (2026) provides the local policy framework to deliver sustainable growth in Swindon to 2026 and beyond. The Local Plan was adopted in March 2015.

3.4.2 Local Plan Policy NC3 allocates the Site as part of a mixed use urban extension of about 8,000 new homes with associated retail, employment, education and leisure uses to the east of Swindon, known as the New Eastern Villages (NEV), including Rowborough and the South Marston Village Expansion. The 8,000 dwellings are to be provided through a design-led approach to housing density, leading to an overall average density outside of South Marston of 40 dwellings per hectare comprising:

- about 6,000 dwellings at the New Eastern Villages (south of the A420);
- about 1,500 dwellings at Rowborough (north of the A420); and
- 500 dwellings at South Marston.

3.4.3 The Site comprises all of the allocated land north of the A420, which includes the allocation at Rowborough and the expansion of South Marston.

The policy requirements for the NEV as a whole include:

- provision of a high quality public realm including outdoor civic public space;
- sustainable transport links;
- green infrastructure that maximises opportunities for habitat connectivity and enhanced biodiversity;
- sports and leisure facilities;
- employment land (B use classes) that complements a mixed use District Centre;
- retail and complementary uses to be distributed across the District Centre and a network of Local Centres and within the expanded South Marston;
- a minimum of 8 forms of entry of secondary and 8 forms of primary provision;
- community facilities;

- a health care facility with GP, dentist and pharmacy at the District Centre; and
- safeguarded land for a fire station.

3.4.4 Local Plan Policy RA3 seeks to ensure that expansion of South Marston contributes towards the creation of an integrated village with a district rural and separate identity from Swindon and the NEV. The policy seeks that development at South Marston provides:

- housing at an average density of 30 dwellings per hectare and affordable housing at no more than 20%;
- community and recreation facilities and retail provision of an appropriate scale, as part of the village centre;
- green infrastructure;
- the delivery of primary school places;
- an extended recreation ground;
- protection of historical landscape features, archaeological assets and existing green infrastructure;
- retention of open space north of the railway;
- sustainable transport and mitigation in relation to flood risk; and
- a new road connection between Thornhill Road and Old Vicarage Lane.

3.4.5 Local Plan Policy SD1 sets out the sustainable development principles that govern all development proposals, which include: high quality design; promotion of health; safe and inclusive communities; respect, conservation and/ or enhancement of the natural, built and historic environments; provision of accessibility for walking, cycling and/or public transport; and use of land and resources in an efficient and sustainable way.

3.4.6 Local Plan Policy SD2 sets out SBC's Sustainable Development Strategy and identifies the Eastern Villages including Rowborough and the expanded South Marston (the Site) as a strategic urban extension. The policy also sets out the required quantum of growth within the Borough over the Plan period up to 2026 of not less than 22,000 dwellings and 119.5 hectares of employment (B-class) land. About 8,000 dwellings and 40 hectares of employment land are allocated at the NEV and its inclusions as indicated by Table 1.

3.4.7 Local Plan Policy SD3 sets out the presumption in favour of sustainable development; sets out an approach to work proactively and jointly with applicants to deliver sustainable development; and considers the role of an overarching design approach to guide reserved matters applications.

3.4.8 Local Plan Policy DE1 requires high standards of design addressing the objectives of sustainable development and the principles of place making. Proposals are to be assessed with reference to their context and character; layout, form and function; and the amenity and quality of the public realm.

3.4.9 Local Plan Policy DE2 sets out the Council's expectations for the adoption of sustainable methods of construction through the layout and design of development and the orientation and design of buildings, recognising that nationally prescribed standards take precedence.

3.4.10 Local Plan Policy HA1 sets out a requirement for housing developments to be design-led, ensuring that densities, house types and sizes respect the character of the surrounding area and ensuring a good mix of housing to meet local needs as identified within the Swindon Strategic Housing Market Assessment and in line with the Swindon Borough Housing Strategy.

3.4.11 Policy HA2 sets a requirement for developments of 15 homes or more, or on sites larger that hectares and subject to economic viability assessment to provide an affordable housing target of 30% affordable homes on site, and where it can be robustly demonstrated as appropriate, a proportionate contribution to be provided towards affordable homes off-site where on-site provision is not suitable. Where affordable homes are provided on site, they should be integrated within the design and layout of a development with a mix and tenure that reflects current need.

3.4.12 Local Plan Policy EC2 refers to employment land and uses and requires consideration of a sequential approach to site selection for proposals for office development (B1(a)) over 1,000sqm gross floorspace.

3.4.13 Local Plan Policy EC3 refers to retail uses and the Role of Centres and requires consideration of a sequential approach to site selection for proposals for retail floorspace exceeding 600 sqm gross floorspace.

3.4.14 Local Plan Policy TR1 supports a reliable and efficient transport network; improvements to safety, security and healthy lifestyles; equality of opportunity to access services and facilities; and reduction of emissions.

3.4.15 Local Plan Policy TR2 requires new development to be located and designed to reduce the need to travel and encourage the use of sustainable transport alternatives. Access should be appropriate to the scale, type and location of development without detriment to highway safety and local amenity; and retain, or where this is not possible replace, existing rights of way. Policy TR2 requires submission of Transport Assessments and Travel Plans to support development that is likely to have a significant transport and related environmental impact. The policy also requires parking provision to include secure cycle and motorcycle parking in line with SBC's adopted parking standards.

3.4.16 Local Plan Policy IN1 sets out a requirement for development to meet the cost of new infrastructure made necessary by the development, to include strategic, local and site specific infrastructure.

3.4.17 Local Plan Policy CM1 sets out a requirement to meet the long-term primary and secondary school place provision of 11 new primary schools (or 24 forms of entry in total), 3 new secondary schools and expansion of existing schools (or 35 new forms of entry in total). The policy includes a requirement for the long-term needs of post-16 education provision and Special Education Needs (SEN) to be met. New schools should be sited within the heart of the communities they serve and be designed to provide safe walking and cycling access.

3.4.18 Local Plan Policy CM2 promotes active, healthy and safe lifestyles by increasing opportunities to walk and cycle and encouraging more sustainable travel choices, increasing access to green spaces, designing out crime and designing in health and provision of open space, leisure and sport facilities, and cultural, health, fire, police, faith and multi-use community facilities.

3.4.19 Local Plan Policy CM3 promotes local and integrated service delivery through flexible multi-use buildings in public and community ownership, and co-location of sports

centres and playing pitches with schools, including an agreement to use schools and other public buildings for community use.

3.4.20 Local Plan Policy EN1 seeks to protect and enhance green infrastructure and assets in accordance with those identified at Appendix 4 of the Local Plan and provides for the protection and integration of visually or ecologically important existing trees, hedges and woodlands. Development should also design in green infrastructure with existing green corridors identified on the Proposals Maps to maximise connections and multifunctionality. Local Plan Policy EN2 supports the Great Western Community Forest.

3.4.21 Local Plan Policy EN3 requires developments to provide or contribute towards public open space at a standard of 3.2 Ha per 1000 population (Appendix 3). The open space provision is sub-divided into 4 categories: children's and teenagers' play areas; outdoor sports facilities; general recreation areas; and allotments.

3.4.22 Local Plan Policy EN4 encourages development to avoid direct and indirect negative impacts upon biodiversity and, where appropriate, protect and enhance biodiversity and provide net local biodiversity gain.

3.4.23 Local Plan Policy EN5 expects the intrinsic character, diversity and local distinctiveness of landscape to be protected, conserved and enhanced and for the design of development and the materials used to be sympathetic to the surrounding environment. Unacceptable impacts upon the landscape should be avoided, and where considered unavoidable they should be successfully mitigated.

3.4.24 Local Plan Policy EN6 directs development to areas with the lowest probability of flooding, ensuring that all new development addresses the effective management of all sources of flood risk. Development proposals must be assessed against the Local Flood Risk Management Strategy to address locally significant flooding including that affecting neighbouring authorities. All development is required to provide a drainage strategy, expected to incorporate sustainable drainage systems ensuring that run-off rates are attenuated to greenfield levels.

3.4.25 Local Plan Policy EN8 and EN9 refers to development on unstable, or potentially unstable land, and development on contaminated, or potentially contaminated land,

respectively, and where planning permission is granted, conditions may be imposed requiring necessary remedial works.

3.4.26 Local Plan Policy EN10 requires the setting and significance of historic environment assets to be sustained and were appropriate enhanced. Harm to designated or non-designated assets must be justified and weighed against the benefits of the proposals.

3.5 SUPPLEMENTARY PLANNING DOCUMENTS

Eastern Villages Draft Supplementary Planning Document (2013) and South Marston Draft Supplementary Planning Document (2013)

3.5.1 The Inspector in his Report to the Swindon Local Plan 2026 referred to modifications required to amend the level of detail presented in the draft SPD's, particularly with regard to development management policies, site allocations and infrastructure contributions, detail which should be set out in the Local Plan and not deferred to SPD.

3.5.2 In order to make the Local Plan sound, the Inspector required deletion of references to both the *Eastern Villages Draft Supplementary Planning Document (2013)* and the *South Marston Draft Supplementary Planning Document (2013)*. These two document are not currently being progressed.

3.5.3 Plan refers at paragraph 1.11 to the preparation of SPD's as necessary, to provide detailed advice on specific topics and areas. Such documents will be documented within the Local Development Scheme.

3.6 EMERGING LOCAL PLANNING POLICY

Neighbourhood Plan for South Marston, Submission Draft (December 2015)

3.6.1 An application for the designation of a Neighbourhood Plan Area for South Marston Neighbourhood Plan was submitted to Swindon Borough Council and was confirmed on 4 June 2015. The Plan area includes part of the application site that includes development at South Marston, and north of the railway line and west of the South Marston Brook. The Draft Plan was submitted to Swindon Borough Council on 12th January 2016.

3.6.2 The Submission Neighbourhood Plan seeks to set out a vision for the whole of the Neighbourhood Plan area. A vision of an expanded village with sense of community and design that builds on existing character is portrayed.

3.6.3 The draft Neighbourhood Plan proposes a number of policy proposals for South Marston that include integrating development; design principles; development of the village centre; access to the A420; movement and permeability; green infrastructure; as well as policies relating to broadband; utilities and housing for the elderly.

Draft Supplementary Planning Document
New Eastern Villages Planning Obligations (March 2016)

3.6.4 The New Eastern Villages Planning Obligations Draft SPD is at consultation stage. It provides guidance to support the delivery of growth at the New Eastern Villages allocated through Local Plan Policy NC3.

3.6.5 Other documents in draft form at the present time include the Borough wide Residential Design Guide.